Act (1971:1078) on Defence Inventions

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Content:

Transitional provisions

Introductory provisions

Section 1 In this Act, a Swedish defence invention refers to an invention that

1. specifically relates to military equipment, and
2. has been created in Sweden or belongs to a natural person residing here or a Swedish legal person.

In this Act, a foreign defence invention means an invention other than one referred to in the first paragraph, if a patent is applied for on the invention in Sweden and the invention

1. specifically relates to military equipment, or
2. is kept secret in another state with regard to the national defence interest

and a patent on the invention in accordance with an agreement between Sweden and that state may be applied for on condition that the invention is kept secret here.

The Government may issue regulations on what is meant by military equipment in this Act. *Act (2024:455)* .

Section 2 A defence invention may not be published or otherwise disclosed without authorisation before it has been examined in accordance with this Act whether the invention should be kept secret. *Act (2024:455)* .

Section 3 The issue of secrecy of a defence invention is examined by the Defence Inventions Review Board and the Defence Materiel Administration.

The Swedish Defence Materiel Administration shall consult with the Armed Forces in its assessment. *Law (2024:455)* .

The committee has a quorum when the chairman and three other members are present. *Act (1986:1161)* .

Section 4 The Review Board shall consist of a chairman and six other members. The members shall have the number of alternates determined by the Government. Members and alternates shall be appointed by the Government.

The committee has a quorum when the chairman and three other members are present. *Act (2024:455)* .

Swedish defense inventions

Section 5 If an application for a patent for a Swedish defence invention is submitted to the Swedish Patent and Registration Office, the Office shall promptly submit the application to the Swedish Defence Materiel Administration for consideration of whether the invention should be kept secret.

Anyone who wants a Swedish defense invention, for which a patent has not been applied for, to be published or otherwise disclosed must apply for a

review of whether the invention should be kept secret from the Swedish Defence Materiel Administration. This also applies to anyone who wants to apply for a patent for a Swedish defense invention by submitting to a recipient other than the Swedish Patent and Registration Office an international patent application as referred to in Chapter 10 of the Patent Act (2024:945) or a European patent application as referred to in Chapter 11 of the same Act. *Act (2024:946)* .

Section 6 If the Swedish Defence Materiel Administration, in its examination, assesses that it is of essential importance to the defence that the invention be kept secret, the agency shall submit the matter to the review board for final examination with its own reasoned opinion. If the review board shares the assessment, the board shall decide that the invention may not be published or otherwise disclosed without authorisation.

A submission of a matter to the examination board shall take place no later than two months after the patent application, or application for examination, was received by the Swedish Defence Materiel Administration. International and European patent applications, where priority has been claimed, shall, however, be submitted no later than three weeks after the application was received by the Swedish Defence Materiel Administration.
Act (2024:455) .

Section 7 If, in a matter submitted by the Patent and Registration Office to the Defence Materiel Administration, a decision on confidentiality pursuant to Section 6 has not been issued within the period specified in the second paragraph, the invention ceases to be secret pursuant to this Act.

The period according to the first paragraph is

1. if the matter concerns an international patent application, three months from the international filing date, however, in cases where priority has been claimed, a maximum of thirteen months from the date from which priority is claimed,
2. if the matter concerns a European patent application, three months from the date on which the application was received by the Swedish Patent and Registration Office, however, in cases where priority has been claimed, a

maximum of thirteen months from the date from which priority is claimed, or

3. if the matter concerns a Swedish patent application, three months from the date on which a description of the invention, drawings and patent claims were received by the Swedish Patent and Registration Office.

If a case has been initiated at the Swedish Defence Materiel Administration, the invention ceases to be secret under this Act if a decision to keep it secret under Section 6 has not been issued within three months of the date on which the application for review and the documents necessary for the review were received by the Swedish Defence Materiel Administration.
Act (2024:946) .

Section 8 The review board shall, upon application or when there is another reason to do so, review whether a decision to withhold information pursuant to Section 6 shall stand. Such review shall always take place within one year of the date on which the decision was issued or last reviewed.

In the event of a re-examination, the review board shall first submit the matter to the Swedish Defence Materiel Administration for review. If the Swedish Defence Materiel Administration determines that the invention no longer needs to be kept secret, the agency may revoke the decision. Otherwise, the agency shall submit the matter to the review board for final review with its own reasoned opinion.

If the decision to keep a secret concerns an invention that is kept secret in another state, the decision may not be revoked without that state having been given the opportunity to comment.

If the decision to withhold information is lifted, the Swedish Patent and Registration Office may not keep the documents in the case available until three months have passed from the date on which the decision ceased to apply, unless the applicant requests it.
Act (2024:455) .

Section 9 If there are special reasons, the Government may decide that an invention covered by a decision on confidentiality pursuant to Section 6 may

be disclosed to someone else, provided that the confidentiality of the invention is not otherwise jeopardized.
Act (2024:455) .

Section 10 An application for a patent or other protection right in respect of another state on a Swedish defence invention, which is to be kept secret, may only be made if the Government approves it. Such approval may only be given if the invention is also kept secret in the other state. *Act (2024:455)* .

Section 11 If a decision to keep the invention confidential pursuant to Section 6 has been issued, the inventor or the inventor's right holder may apply to the Review Board for the state to take over the invention. The Review Board shall then, after hearing the Defence Materiel Administration, reconsider the decision. If the Review Board deems that the decision should stand, the Board shall submit the documents in the case to the Government or the authority designated by the Government.

If the state has not taken over the invention within four months of the application being submitted to the examination board, the decision to keep the invention secret shall cease to apply. However, the government may extend the period by a maximum of two months if there are special reasons.
Act (2024:455) .

Section 12 If a notification has been submitted pursuant to Chapter 4, Section 27, first paragraph, of the Patents Act (2024:945) in connection with an application for a patent for an invention covered by a decision on confidentiality pursuant to Section 6, the application shall be declared dormant pending the decision ceasing to be valid. As long as the decision remains in force, Chapter 4, Section 27, second paragraph, Sections 28 and 29 and Chapter 7 of the Patents Act shall not apply to the application. When the decision has ceased to be valid, the periods specified in Chapter 4, Section 27, second and third paragraphs shall be counted from the date on which it ceased to be valid. The Swedish Patent and Registration Office may not keep the documents in the case available until three months have passed from that date, unless the applicant requests it.

If a decision to maintain confidentiality pursuant to Section 6 has been issued in respect of an international or European patent application, the application may not be forwarded for further processing.
Act (2024:946) .

Section 13 If a defence invention is of essential importance to defence, the Government may decide that the invention may be exploited on behalf of the State, or by a person appointed by the Government, or that the right to the invention shall be relinquished to the State. *Act (2024:455)* .

Section 14 If a decision is made that an invention shall be kept secret, reasonable compensation shall be provided from public funds for the damage caused by the decision.

If a decision is made pursuant to Section 13, reasonable compensation shall be provided from public funds for the right to the invention to which the decision relates and for the additional damage caused by the decision.
Law (2016:195) .

Foreign defense inventions

Section 15 If an application for a patent for a foreign defence invention is submitted to the Swedish Patent and Registration Office, the Office shall submit the application to the Swedish Defence Materiel Administration for consideration of whether the invention should be kept secret. However, this does not apply to an international or European patent application. *Act (2024:455)* .

Section 16 If the invention is secret under the law of another state, the Swedish Defence Materiel Administration shall decide that the invention may not be published or otherwise disclosed without authorization, if a patent for the invention may be applied for in accordance with an agreement between Sweden and that state, provided that the invention is kept secret here. The Swedish Defence Materiel Administration may, however, require the inventor or the inventor's right holder to waive their right to compensation under

Section 14, first paragraph, in order for such a decision to be issued, if this is consistent with the agreement in question.

If the invention is secret under the law of another state but is not covered by such an agreement as referred to in the first paragraph, and the Swedish Defence Materiel Administration assesses that it is of essential importance for the defence that the invention be kept secret, final examination shall be carried out in the manner specified in Section 6.

If the Swedish Defence Materiel Administration determines that there are no conditions for keeping a foreign defence invention secret, which is secret under the law of another state, the Agency shall make a special decision on this. However, the application may not be published until three months have passed from the date of the decision, unless the applicant requests it. *Act (2024:455)* .

Section 17 When an invention covered by a decision to keep it secret pursuant to Section 16 ceases to be secret in the other state, the Swedish Defence Materiel Administration may revoke the decision. If the Administration considers that the invention should continue to be kept secret in Sweden for special reasons, the Administration shall submit the matter to the Review Board for final review with its own reasoned opinion. *Act (2024:455)* .

Section 18 The provisions of Section 8, fourth paragraph, Section 12, first paragraph and Sections 13 and 14 shall also apply to a foreign defence invention. *Act (2024:455)* .

Provisions on confidentiality in government agencies

Section 19 Confidentiality applies in cases and matters under this Act to information that, according to Section 2 or as a result of decisions under Section 6 or Section 16, may not be published or otherwise disclosed without authorization. The provisions of Chapters 2, 3, 7-12 and 14, Chapter 36 Section 5, Chapter 40 Section 4, Chapter 41, Chapter 42 Sections 1-8, 10 and

11 and Chapter 43 of the Public Access and Confidentiality Act (2009:400) apply to this confidentiality.

Other provisions on confidentiality with regard to national security and provisions to protect the personal or financial circumstances of individuals are found in the Public Access and Confidentiality Act. *Act (2024:455)* .

Section 20 In addition to what follows from Chapter 5, Section 1 of the Code of Judicial Procedure, a court may decide that a hearing in a case concerning compensation or liability based on this Act shall be held behind closed doors, if it can be assumed that information will be presented for which confidentiality applies to the court pursuant to Section 19. *Act (2024:455)* .

Criminal liability and damages

Section 21 Anyone who violates Section 10 shall, if the act is not punishable under the Criminal Code, be sentenced to a fine or imprisonment for a maximum of one year.

Provisions on liability for those who violate the duty of confidentiality that applies under Section 2 or under a decision that has been issued under Section 6 or 16 are found in the Criminal Code.
Act (2024:455) .

Section 22 Any person who professionally exploits an invention for which a patent has been applied for in Sweden and which is subject to a decision to withhold information pursuant to Section 6 or 16 shall, if a patent is granted for the invention, pay reasonable compensation for the exploitation and compensation for the additional damage that the exploitation would have caused if he or she had been aware of the patent application. However, compensation shall only be paid for exploitation that takes place after the earliest date that the documents in the patent case would have been published pursuant to Chapter 7, Section 1 of the Patents Act (2024:945) if a decision pursuant to Section 6 or 16 had not been issued.

In the case of an action for compensation pursuant to the first paragraph, the provisions of Chapter 15, Section 12 of the Patent Act shall apply.

Act (2024:946) .

Appeal and competent court

Section 23 The decision of the Review Board and the Swedish Defence Materiel Administration that an invention shall be kept secret may be appealed to the Government. *Act (2024:455)* .

Section 24 The Patent and Market Court is the competent court in cases under this Act. *Act (2016:195)* .

Transitional provisions

1993:1407

1. This Act enters into force on 1 January 1994.
2. If a patent application has been approved for publication before entry into force, older provisions apply.

2016:195

1. This Act enters into force on 1 September 2016.
2. Cases that have been initiated in the Stockholm District Court or the Svea Court of Appeal before entry into force shall be transferred to the Patent and Market Court or the Patent and Market Court of Appeal, respectively.
3. Older provisions still apply to other cases that have been initiated in general courts before entry into force.

Swedish Constitution

The Swedish Code of Statutes (SFS) contains current laws and regulations. If a statute is amended, the old text is replaced with the new one.

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All public power in Sweden emanates from the people and the Riksdag is the people's primary representative.

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